

United States Court of Appeals for the Fourth Circuit

Supplemental District Status Certification

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 9 — Filed June 5, 2026

Pursuant to the Court's June 3 order, Appellant Asterglen Freight Software, Inc. certifies the status of Civil Action No. SYN-NDWV-25-CV-0618 after reviewing the district docket through June 5, 2026. Count II of Asterglen's Complaint against Meridian Silt Holdings, LLC remains unresolved. Copper Kestrel Logistics, LLC's First Amended Counterclaim against Asterglen, seeking \$120,000, also remains unresolved.

The district court has not entered a merits ruling, voluntary-dismissal order, settlement dismissal, consent judgment, or other adjudication disposing of either remaining claim. It has not entered a judgment resolving the entire action. The January 12, 2026 memorandum opinion and order still addresses Count I only. The February 4 order and separate partial judgment have not been amended, supplemented, or replaced and still contain no express determination that there is no just reason for delay.

The district case remains open. Routine administration of the unresolved claims has continued, but no later entry changes which claims were decided or supplies additional Rule 54(b) findings. This certification reports docket status only and presents no new evidence or legal argument.

Continuing certificate under the June 5 filing

The June 5 certification remained subject to counsel's undertaking to report any material district-court change before appellate judgment. Counsel completed a further docket inquiry on June 8, immediately before entry of judgment, and submits this continuing certificate under the same filing. The reported status remained unchanged through that judgment: Count II against Meridian and Copper's amended counterclaim against Asterglen were still pending, and the district action had not reached a whole-case final judgment.

No party filed a motion to dismiss either remaining claim between June 5 and June 8. No settlement notice, stipulation, Rule 41 dismissal, merits order, or revised certification appeared on the district docket. The February 4 partial judgment continued to dispose of Count I alone. Thus, the unresolved claims identified in the original certification remained unresolved when this Court entered judgment on June 8.

This continuing certificate supplies current docket facts and no additional legal argument. It does not ask the Court to infer how Rule 54(b) applies, adopt Appellees' jurisdictional position, or withdraw Asterglen's arguments. After reasonable inquiry, counsel certifies that the stated facts accurately describe the district docket from the June 5 filing through the June 8 judgment.

The original certification was filed electronically on June 5, 2026; this continuing certificate was submitted on June 8 under Appellate ECF No. 9. Electronic service was made on counsel for Copper and Meridian. Submitted for Asterglen Freight Software, Inc. by its appellate counsel of record.